

EXHIBIT B



UNITED STATES DEPARTMENT OF JUSTICE
EXECUTIVE OFFICE FOR IMMIGRATION REVIEW
BALTIMORE IMMIGRATION COURT

Respondent Name:

ABREGO-GARCIA, KILMER ARMADO

To:

Osorio, Benjamin James
4103 Chain Bridge Road
Suite 300
Fairfax, VA 22030

A-Number:

201-577-119

Riders:

In Removal Proceedings

Initiated by the Department of Homeland Security

Date:

12/11/2025

☐ Unable to forward - no address provided.

☒ Attached is a copy of the **decision of the Immigration Judge**. This decision is final unless an appeal is filed with the Board of Immigration Appeals within 30 calendar days of the date of the mailing of this written decision. See the enclosed forms and instructions for properly preparing your appeal. Your notice of appeal, attached documents, and fee or fee waiver request must be mailed to:

Board of Immigration Appeals
Office of the Clerk
P.O. Box 8530
Falls Church, VA 22041

☐ Attached is a copy of the decision of the immigration judge as the result of your Failure to Appear at your scheduled deportation or removal hearing. This decision is final unless a Motion to Reopen is filed in accordance with Section 242B(c)(3) of the Immigration and Nationality Act, 8 U.S.C. § 1252B(c)(3) in deportation proceedings or section 240(b)(5)(c), 8 U.S.C. § 1229a(b)(5)(c) in removal proceedings. If you file a motion to reopen, your motion must be filed with this court:

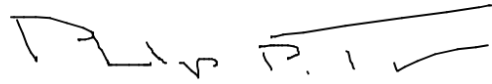
Immigration Court

☐ Attached is a copy of the decision of the immigration judge relating to a Reasonable Fear Review. Pursuant to 8 C.F.R. § 1208.31(g)(1), no administrative appeal is available.

☐ Attached is a copy of the decision of the immigration judge relating to a **Credible Fear Review**. This is a final order. No appeal is available.

☐ Other:

Date: 12/11/2025



Immigration Judge: TAYLOR, PHILIP 12/11/2025

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Respondent Name : ABREGO-GARCIA, KILMER ARMADO | A-Number : 201-577-119

Riders:

Date: 12/11/2025 By: Long, Cynthia, Court Staff



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ORDER OF THE IMMIGRATION JUDGE

Immigration Court's Sua Sponte Order Correcting Scrivener's Error

Order:

On December 11, 2025, the Department of Homeland Security (DHS) filed a District Court Order with the Immigration Court. That District Court Order ordered the Respondent released from DHS custody based on a belief the Respondent had not been previously ordered removed by the Immigration Court. The DHS filing with the Immigration Court noted a scrivener's error in the Immigration Judge's original final written decision in this case. That scrivener's error was that while the Respondent was granted the benefit of withholding of removal to El Salvador, the Immigration Judge had not expressly stated in the written order that the Respondent was ordered removed to El Salvador. Although the parties have not raised this issue with the Immigration Court throughout the past five years of litigation in this matter, the Immigration Court will take this opportunity now to correct that scrivener's error.

Procedurally, the Respondent admitted the factual allegations contained in the Notice to Appear and conceded removability as charged at a master calendar hearing on May 29, 2019. Based on the Respondent's admissions and concessions, the Court found his removability was established by clear and convincing evidence. The Court further designated El Salvador as the country of removal. The Respondent agreed with that country designation.

On July 25, 2019, the Respondent filed a form I-589 application for asylum, withholding of removal, and for protection under the Convention Against Torture. A full evidentiary individual merits hearing was held on September 27, 2019, and the Immigration Court issued a written decision on October 10, 2019. That decision is incorporated by reference herein (See Immigration Judge's written decision of October 10, 2019).

In the written decision, the Immigration Judge found that the Respondent's removability was

established by clear and convincing evidence (Immigration Judge's October 10, 2019, decision, p. 2.) Following the full evidentiary trial, the Immigration Judge denied the Respondent's request for asylum and for protection under the Convention Against Torture. (This order does not amend or change those determinations.) The Immigration Judge, however, granted the Respondent the benefit of withholding of removal to El Salvador.

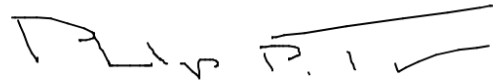
While the Respondent was previously found to be removable and El Salvador was designated as the country of removal, the Immigration Judge's final written order stated that "the Respondent's application for withholding of removal pursuant to INA § 241(b)(3) is GRANTED," but the order of removal to El Salvador, which should have preceded the order granting him withholding of removal to El Salvador, was erroneously omitted. Matter of I-S- & C-S-, 24 I&N Dec. 432, 434 (BIA 2008) clarified that "when an Immigration Judge decides to grant withholding of removal, an explicit order of removal must be included in the decision."

The Immigration Court now corrects that scrivener's error and amends the written decision in this case by adding the following: The Respondent is ordered removed to El Salvador based on the charge contained in the Notice to Appear, but the Respondent's application for withholding of removal to El Salvador pursuant to INA § 241(b)(3) is granted.

The Court also corrects the reference to Guatemala to read El Salvador at page 13 of the written decision.

These corrections are hereby issued nunc pro tunc to the Immigration Court's written decision and order of October 10, 2019.

(The Judge issuing this correction states that he has familiarized himself with the record in this matter as required pursuant to 8 CFR 1240.1(b)).



Immigration Judge: TAYLOR, PHILIP 12/11/2025

Appeal: Department of Homeland Security: ☐ waived ☒ reserved
Respondent: ☐ waived ☒ reserved

Appeal Due: 01/12/2026

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